

25NNCV08732 25NNCV08732

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-14

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Case Number: 25NNCV08732 Hearing Date: August 14, 2026 Dept: B

Hon. Victor

Avila, Dept B

MOTION TO BE RELIEVED AS
COUNSEL

Hearing Date: 8/14/26¿

CASE NO./NAME: 25NNCV08732/

Brite Cap Financial v. Avalos General

Construction, et al.

Moving Party: Defendants' Counsel

Responding Party: None

Notice: Sufficient¿

Ruling: GRANTED

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on

the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

Attorneys

Stefan Stuparu, Esq. and Joseph T. Hitrec, Esq. (Counsel) represent defendants Juan Avalos and Avalos General Construction. (Defendants) in this breach of contract action. On July 22, 2026, Counsel filed the instant motion to be relieved as counsel as to Defendants. Counsel cites a breakdown in the attorney client relationship.

No

oppositions have been filed as of August 6, 2026.

LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284(2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court, 1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Court, rule 3.1362(a)), MC-052 (Declaration) (Cal. Rules of Court, rule 3.1362(c)), and MC-053 (Proposed Order) (Cal. Rules of Court, rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Court, rule 3.1362(e).)

Further, the requisite forms must be served on the

client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant, (1994) 21 Cal.App.4th 904, 915.)

DISCUSSION

Counsel has filed the notice of motion to be relieved as counsel on form MC-051 as to both Defendants (Cal. Rules of Court, rule 3.1362(a)), a declaration on form MC-052 as to both Defendants (Cal. Rules of Court, rule 3.1362(c)), and proposed order on form MC-053 as to both Defendants. (Cal. Rules of Court, rule 3.1362(e).) Counsel's declaration and the proposed order identify the next hearing as the Post Mediation Status Conference. (Price Decl., ¶ 4; Proposed Order, ¶ 7.)

Counsel declares that there has been an irreparable breakdown in the attorney client relationship in this matter. (Price Decl., ¶ 2.)

The Court finds that Counsel has set forth sufficient grounds to be relieved as counsel for Defendants. Also, the motion complies with the requirements of California Rules of Court, rule 3.1362. Given that trial is not set in this action, the Court finds that withdrawal at this stage of litigation will not prejudice Defendants. Defendants have not filed an opposition contending otherwise.

CONCLUSION AND ORDER

Attorneys Stefan Stuparu, Esq. and Joseph T. Hitrec, Esq.'s motion to be relieved as counsel is GRANTED.

The Court schedules an Order to Show Cause Hearing re: Case Status for September 10, 2026, at 8:30 a.m. in Department B of the Burbank Courthouse. Defendants Juan Avalos and Avalos General Construction Services, LLC. are ordered to appear in court, unless they are represented by authorized counsel at the hearing.

MOVING PARTY is to give notice and provide a
proposed order consistent with this ruling within 5 days from this date.